**No. 26-4014**

**IN THE UNITED STATES COURT OF APPEALS**
**FOR THE TENTH CIRCUIT**

PHIL LYMAN,

Plaintiff-Appellant,

v.

DEIDRE HENDERSON, in her official capacity as Lt. Governor of the State of Utah,

Defendant-Appellee.

Appeal from the United States District Court for the District of Utah

Honorable David Nuffer, District Judge
Case No. 4:25-CV-00069-DN-PK

# APPELLANT'S OPENING BRIEF


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## STATEMENT OF PRIOR OR RELATED APPEALS

This is the first appeal in this case and there are no related appeals.

## JURISDICTIONAL STATEMENT

This is a case about denial of public records under federal law. The district court had subject matter jurisdiction under 28 U.S.C. § 1331. The district court granted the Lt. Governor's motion to dismiss and entered judgment on January 15, 2026. App.113-14.[1] Mr. Lyman timely appealed on February 12, 2026. App.115-16. This Court has jurisdiction under 28 U.S.C. § 1291.

## STATEMENT OF THE ISSUES

(I) The district court erred in finding that Mr. Lyman, a candidate for public office and former elected official, lacked Article III standing to redress the denial of public records under the National Voter Registration Act ("NVRA").

(II) The district court erred in finding that Mr. Lyman failed to plausibly allege sufficient downstream consequences arising from the denial of public records.

(III) The district court erred in finding that Article III standing for denial of public records requires a showing beyond the denial of records Congress deemed to be public.

## STATEMENT OF THE CASE

Congress decided that "all records" concerning voter list maintenance are public. 52 U.S.C. § 20507(i)(1). Appellant Phil Lyman, a candidate for public office, Utah

[1] References to the Appendix include the specific page number(s) of the Appendix.

voter, and former elected official, sought public records. Utah refused to provide them. App.90-91. The district court held that defendant's denial of public records did no harm to Mr. Lyman. App.87-112.

## SUMMARY OF ARGUMENT

Candidates for public office have standing to request list maintenance records under the NVRA in the same way the Supreme Court ruled candidates have standing in *Bost v. Ill. State Bd. of Elections*, 146 S. Ct. 513, 519 (2026) pertaining to enforcing other federal election laws. The district court erred in demanding to know why Mr. Lyman needed public records and subjecting his reasons to court scrutiny. Congress already decided the question.

The district court misapplied this Court's decision in *Laufer v. Looper*, 22 F.4th 871 (10th Cir. 2022). Even if a plaintiff must plead downstream consequences for the denial of public records, Mr. Lyman's complaint did so on its face. As a candidate and voter, he cannot analyze Utah's voter list maintenance practices for conformity with federal law. He cannot evaluate defendant's enforcement of voter eligibility requirements. Worst of all, he cannot evaluate the performance of government officials in fostering the explicit statutory purposes of the NVRA such as ensuring accurate voter lists.

## STANDARD OF REVIEW

De novo is the standard of review here. Granting a motion to dismiss for lack of subject matter jurisdiction under Fed. R. Civ. P. 12(b)(1) is subject to this standard. *Santa Fe All. for Pub. Health & Safety v. City of Santa Fe*, 993 F.3d 802, 810-11 (10th Cir. 2021). This Court must "accept the complaint's well-pled factual allegations as true." *Jacobs v. Salt Lake City Sch. Dist.*, 154 F.4th 790, 798 n. 3 (10th Cir. 2025); *Calderón v. City & Cnty. of Denver*, 855 F. App'x 438, 445 (10th Cir. 2021). "[I]n reviewing the standing question, the court must be careful not to decide the questions on the merits for or against the plaintiff, and must therefore assume that on the merits the plaintiffs would be successful in their claims." *Am. Wild Horse Campaign v. Burgum*, 768 F. Supp. 3d 1291, 1306 (D. Colo. 2025) (quoting *Initiative & Reform Inst. v. Walker*, 450 F.3d 1082, 1093 (10th Cir. 2006)).

## ARGUMENT

### I. Candidates Have Standing Under the NVRA.

Candidates for public office and voters have standing to request public election records under the NVRA, just as they have standing to enforce other federal election laws under *Bost*, 146 S. Ct. 513.

The day before the district court's decision, the United States Supreme Court issued an opinion on standing. The Supreme Court explained, "Courts sometimes make

standing law more complicated than it needs to be." *Bost*, 146 S. Ct. at 523 (quotation omitted). The Court ruled that candidates have standing.

In *Bost*, plaintiffs "challenged Illinois's procedure for counting mail-in ballots received after election day." *Id.* at 518. The Supreme Court held the candidates had standing because "a candidate has a personal stake in the rules that govern the counting of votes in his election." *Bost*, 146 S. Ct. at 519. The Supreme Court explained candidates are uniquely situated because "[a]n unfair and inaccurate election plainly affects those who compete for the support of the people in a different way than it affects the people who lend their support." *Id.* at 520.

*Bost* should control the standing analysis here. The Supreme Court in *Bost* held that a candidate's "interest extends to the integrity of the election—and the democratic process by which they earn or lose the support of the people they seek to represent." *Bost*, 146 S. Ct. at 522-23. As a former candidate and a declared candidate, Mr. Lyman has a personal stake in the integrity of Utah's elections. His stake manifests in his plans to study and analyze Utah's list maintenance activities to ensure Utah is complying with important election integrity statutes. Mr. Lyman is directly harmed by Utah withholding public information that would allow him to carry out his plans.

Though the *Bost* plaintiffs sought to enforce the federal election day statute, 2 U.S.C. § 7 and 3 U.S.C. § 1, the fundamentals on when candidates have standing are the same as here. Indeed, *Bost*'s plaintiffs' claim to Article III injury may be more tenuous than Mr. Lyman's. The Supreme Court in *Bost* allowed candidate standing to rest on a

general departure from the law or a possible inaccurate vote tally to satisfy Article III standing. The concurrence allowed monetary expenditures to vest standing. *Bost*, 146 S. Ct. at 523 (Barrett, J., concurring in judgment.) These may not be the precise harms listed in Mr. Lyman's complaint, but they rhyme.

Mr. Lyman has championed transparency in elections, even making it part of his gubernatorial campaign platform in 2024. *See* Phil Lyman, Election Policy Vision, LYMAN FOR UTAH – PHIL LYMAN FOR GOVERNOR https://web.archive.org/web/20240509161526/https://lymanforutah.com/elections/. (last visited April 7, 2026). Mr. Lyman sought to review election records to see if the law was being followed and the rolls were accurate.[2] Not knowing who is eligible to vote impairs his very ability to be a candidate and ascertain the state of the rolls. His injury is as robust as that suffered by Congressman Bost.

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[2] In March 2026, Mr. Lyman filed a declaration of candidacy for the United States House of Representatives with the Office of the Lt. Governor. See 2026 Declaration of Candidacy available at https://vote.utah.gov/wp-content/uploads/2026/03/CD3-Phil-Lyman.pdf. "Fed. R. Evid. 201 allows courts to take judicial notice of facts 'at any stage of the proceeding' if the facts are 'not subject to reasonable dispute.'" *Winzler v. Toyota Motor Sales U.S.A., Inc.*, 681 F.3d 1208, 1212-1213 (10th Cir. 2012).

## CONCLUSION

Mr. Lyman requests this Court reverse the district court's judgment and remand this action.

Respectfully submitted,

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Dated: April 7, 2026

## STATEMENT IN SUPPORT OF ORAL ARGUMENT

Appellant Mr. Lyman requests oral argument because of the important interests at issue, most notably, a state's ability to limit an individual's access to documents made public under federal law. Mr. Lyman believes that oral argument will materially assist this Court in resolving the Article III standing question at issue here.

## CERTIFICATE OF COMPLIANCE

This brief complies with the type-volume limitation of Federal Rule of Appellate Procedure 32(a)(7)(B), because it contains 1,136 words, which is no more than the 13,000 words permitted for a principal brief, excluding the parts of the brief exempted by Federal Rule of Appellate Procedure 32(f).

The brief also complies with the typeface requirements of Federal Rule of Appellate Procedure 32(a)(5) and the type style requirements of Federal Rule of Appellate Procedure 32(a)(6), because it has been prepared in a proportionally spaced typeface, EB Garamond, in 14-point type.

/s/ Kaylan Phillips
Kaylan Phillips
April 7, 2026

## CERTIFICATE OF DIGITAL SUBMISSION

I hereby certify that with respect to the foregoing:

(1) all required privacy redactions have been made per Fed. R. App. P. 25(a)(5) and 10th Cir. R. 25.5;

(2) that this document is a native PDF document;

(3) that the ECF submission is an exact copy of those documents;

(4) the digital submission has been scanned for viruses with the most recent version of a commercial virus scanning program, Bitdefender Endpoint Security Tools Antimalware, last updated on April 6, 2026 and

(5) according to the program, this document is free of viruses.

/s/ Kaylan Phillips
Kaylan Phillips
April 7, 2026

## CERTIFICATE OF SERVICE

I hereby certify that on April 7, 2026, pursuant to Fed. R. App. P. 25 and 10th Cir. R. 25.4, I electronically filed the foregoing using the Court's CM/ECF system, which in turn caused electronic notifications of such filing to be sent to all counsel of record.

/s/ Kaylan Phillips
Kaylan Phillips
April 7, 2026

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